

# **Democratic People's Republic of Korea 2024**

## **Human Rights Report**

### **Executive Summary**

The government, through brutality and coercion including executions, physical abuse, enforced disappearances, and collective punishment, maintained control of the country; there were no significant changes in the human rights situation in the Democratic People's Republic of Korea during the year.

Significant human rights issues included credible reports of: arbitrary or unlawful killings; disappearances; torture or cruel, inhuman, or degrading treatment or punishment; involuntary or coercive medical or psychological practices; arbitrary arrest or detention; transnational repression against individuals in another country; serious restrictions on freedom of expression and media freedom, including censorship; restrictions of religious freedom; instances of coerced abortion or forced sterilization; trafficking in persons, including forced labor; prohibiting independent trade unions or significant or systematic restrictions on workers' freedom of association; and significant presence of any of the worst forms of child labor.

The government did not take credible steps or action to identify and punish officials who committed human rights abuses.

## Section 1. Life

### a. Extrajudicial Killings

There were numerous reports that the government or its agents committed arbitrary or unlawful killings during the year. There was no indication the government acted to investigate such killings or punish officials involved; rather, such killings appeared to be a feature of authorities' system of governance and control.

During the country's 4th cycle UN Universal Periodic Review, the Democratic People's Republic of Korea (DPRK) admitted it carried out public executions and imprisoned perpetrators of "antistate" crimes. According to Park Kwang Ho, director of the Central Court of North Korea, "those who committed antistate crimes are the spies and terrorists who...committed subversive acts bearing grudge against the socialist system of the DPRK. Prisoners of this category are not many in number and they are kept in reform institutions but separately from ordinary prisoners."

Escapee, media, nongovernmental organization (NGO), and UN reports noted instances in which the government executed political prisoners, opponents of the government, asylum seekers who were forcibly returned, government officials, children, pregnant women, and others accused of crimes. The law prescribed the death penalty for the most "serious" cases of "antistate" or "antination" crimes. These terms were broadly interpreted

to include: participation in a coup or plotting to overthrow the state; acts of terrorism for an antistate purpose; treason, which included defection or handing over state secrets; providing information regarding economic, social, and political developments routinely published elsewhere; and “treacherous destruction.” The law also allowed capital punishment for less serious crimes such as theft, destruction of military facilities and national assets, distribution of narcotics, counterfeiting, fraud, kidnapping, distribution of pornography, trafficking in persons, and distribution of certain forms of foreign media content.

Escapee, NGO, and media reports indicated those attempting to leave the country without permission could be killed on the spot or publicly executed.

The government was known to be operating five *kwanliso* (“total control-zone” political prison camps where prisoners were not expected to survive): Camps 14, 16, 18, and 25, as well as the Choma-bong Restricted Area. Estimates of the nationwide *kwanliso* camp population varied, with some organizations placing the total as low as 80,000 and others as high as 200,000.

Defectors, media, NGOs, and UN officials reported many prisoners died from torture, disease, starvation, exposure to the elements, or a combination of these causes. Guards at political prison camps were under orders to shoot to kill those attempting to escape.

The state forced private citizens to attend public executions. Escapees reported attending public executions on school field trips. Some media sources claimed public executions decreased during COVID-19 but increased significantly with the reopening of the border with the People's Republic of China (PRC).

The Republic of Korea (ROK) government-affiliated think tank Korean Institute for National Unification (KINU) released its 2023 *White Paper* report in May that outlined recent defector testimony alleging DPRK officials carried out executions for violating COVID-19 quarantine rules during the pandemic. According to defector testimony, "North Korean authorities gathered residents together and publicly executed those who violated quarantine measures."

According to South Korean media, in late July Kim Jong Un reportedly ordered the execution of government officials for their failure to prevent severe flooding in North Phyongan Province.

A March 2023 report from the Office of the UN High Commissioner for Human Rights (OHCHR) highlighted allegations that some persons accused of political crimes and held in political prison camps and those forcibly repatriated after escaping abroad were "summarily executed with no information provided to their families except that the person [was] dead."

As of year's end, the government had not accounted for the circumstances

that led to the death of Otto Warmbier, who was held in unjust and unwarranted detention by authorities and died soon after his release in 2017.

## **b. Coercion in Population Control**

NGOs and defectors reported state security officials subjected women to forced abortion, particularly for forcibly repatriated women who had become pregnant in the PRC, as well as for mothers who were political prisoners, persons with disabilities, or survivors of rape by government officials or prison guards. In a March briefing paper, Korea Future reported authorities committed a forced abortion on a woman and that she was given no medication and “wasn’t allowed to make a sound.”

According to the 2022 report of the International Bar Association and the Committee for Human Rights in North Korea (HRNK), “The evidence demonstrates a policy of DPRK officials forcibly ending pregnancies that would result in half-Chinese babies,” and such mistreatment of women impregnated by Chinese men was “driven by official ideology that emphasizes the importance of maintaining the purity of the Korean race at all costs” and protecting it from what was considered an “impure” baby.

In addition to vulnerable women in detention, persons with disabilities were not always able to provide informed consent to medical treatment affecting reproductive health. For example, the KINU *White Paper* for 2023 described

testimony of forced sterilization of persons with nanocormia, a form of dwarfism.

## **Section 2. Liberty**

### **a. Freedom of the Press**

The constitution provided for freedom of expression, including for members of the press and other media, but the government prohibited the exercise of this right.

Media, NGO, defector, and UN reports described widespread use of punishments, often severe, for exercising the freedom of expression, particularly for political opinions other than those approved by authorities. There were numerous instances of persons interrogated or arrested for saying something construed as negative about the government.

Discussion or promulgation of South Korean culture was targeted as antiregime. Early in the year, Kim Jong Un shifted his policy on unification, claiming the existence of “two states on the Korean Peninsula.” The regime used this shift in policy to further restrict access to outside information and intensify its control over North Korean citizens.

During a June UN Security Council session, UN High Commissioner for Human Rights Türk noted freedom of expression became even more restricted in recent years, highlighting three measures the regime

introduced: the Reactionary Ideology and Culture Rejection Act of 2020; the Youth Education Security Act of 2021; and the Pyongyang Standard Language Protection Act of January 2023. Under the cultural language act, the government cracked down on the consumption and distribution of cultural materials from the ROK and on speaking or writing in the “South Korean style.” Penalties reportedly included two years of correctional labor for speaking, writing, or singing in the “South Korean style”; five to 15 years’ for watching, listening to, or possessing films, recordings, publications, books, songs, drawings, or photographs from the ROK; and life sentences or execution for importing and distributing such materials.

In January 2023 the Database Center for North Korean Human Rights published a report detailing the inner workings of a nationwide network of officials, known as “nonsocialist groups,” tasked by central authorities with enforcing restrictions on various forms of “nonsocialist and antisocialist acts” such as consuming South Korean media, having contact with South Korean Christian groups, or wearing white wedding dresses or sunglasses.

According to Human Rights Watch, in March and April 2023, authorities conducted public trials in Ryanggang Province under the law banning South Korean culture. One trial targeted 17 young persons for watching unsanctioned videos and using South Korean-style language; one leader of the group was sentenced to 10 years of forced labor. In another trial, 20 youth athletes were sentenced to three to five years of forced labor for

using South Korean vocabulary.

### **Censorship by Governments, Military, Intelligence, or Police Forces, Criminal Groups, or Armed Extremist or Rebel Groups**

The government controlled virtually all information within the country; independent media did not exist. Domestic journalists had no freedom to investigate stories or report freely. The government tightly controlled print media, broadcast media, book publishing, and online media through the Propaganda and Agitation Department of the Workers' Party of Korea (WPK).

Authorities strictly censored domestic media, with no tolerance for deviation from official messages. The government prohibited ordinary citizens from listening to foreign media broadcasts and subjected violators to severe punishment. The ROK Ministry of Unification's 2024 report stated persons convicted of listening to foreign broadcasts were executed alongside others convicted of violent crimes. The executions occurred between March and April 2023 for violations of the Law on Rejecting Reactionary Thought and Culture. Merely viewing South Korean media could result in imprisonment.

Radios and television sets, unless altered, received only domestic programming. Elite citizens and facilities for foreigners, such as hotels, had access to international television broadcasts via satellite. The government

attempted to jam all foreign radio broadcasts.

## **b. Worker Rights**

### **Freedom of Association and Collective Bargaining**

Workers did not have the right to form or join independent unions, bargain collectively, or strike. There were no labor organizations other than those created and controlled by the government. While the law stipulated employees working for foreign companies could form trade unions, and foreign enterprises were required to provide conditions for union activities, the law did not protect workers who attempted to engage in union activities from employer retaliation, nor did it provide penalties for employers who interfered in union activities. Although the constitution stipulated the freedom of assembly for citizens, it was not permitted. Unlawful assembly could result in five years of “correctional” labor.

The WPK purported to represent the interests of all laborers. The WPK Central Committee directly controlled several labor organizations in the country, including the General Federation of Trade Unions of Korea and the Union of Agricultural Workers of Korea. Operating under this umbrella, unions were responsible for mobilizing workers to support production goals and for providing health, education, cultural, and welfare facilities, but it did not provide a means for worker advocacy and representation.

The government controlled all aspects of the formal employment sector, including assigning jobs and determining wages. Joint ventures and foreign-owned companies were required to hire employees from government-vetted lists. The government organized factory and farm workers into councils, which purportedly afforded a mechanism for workers to provide input into management decisions.

## **Forced or Compulsory Labor**

See the Department of State's annual *Trafficking in Persons Report* at <https://www.state.gov/trafficking-in-persons-report/>.

## **Acceptable Work Conditions**

### **Wage and Hour Laws**

There was no statutory minimum wage in the country. No reliable data were available on the minimum wage paid by state-owned enterprises. Wages were sometimes paid at least partially in kind rather than in cash.

The law stipulated an eight-hour workday, although some sources reported laborers worked significantly longer hours, often including additional time for mandatory study of state ideology. In April 2023 Radio Free Asia (RFA) reported authorities had ordered citizens to “read 10,000 pages of propaganda” during the year, with factory workers in South Pyongan Province told to focus on Kim Jong Un’s speeches and transcripts of WPK

meetings. The workers were told to keep logs of their progress for review by WPK officials. Members of the Socialist Women's Union in North Pyongan Province were told to "keep personal reading journals, summarizing the key feelings and thoughts from what they read." *NK News* noted workers could skip the lectures in exchange for large donations to their employer.

The law provided all citizens with a "right to rest," including one day's rest per week (typically Sunday), paid leave, holidays, and access to sanitariums and rest homes funded at public expense. No information was available, however, regarding whether the state provided these services.

Mandatory participation in mass events on holidays and practice sessions for such events sometimes compromised leave or rest from work. Workers were often required to "celebrate" at least some part of public holidays with their work units and were able to spend an entire day with their families only if the holiday lasted two days. Failure to pay wages was common and reportedly drove some workers to seek income-generating activity in the informal or underground economy.

An escapee interviewed by OHCHR described being sent to a coal site for a construction company; he did not receive pay, worked 11-hour days, and stayed in make-shift accommodations made with plastic vinyl that had no heating system during the autumn months.

## **Occupational Safety and Health**

The law recognized the state's responsibility for providing modern and hygienic working conditions. The law criminalized the failure to heed occupational safety and health (OSH) "labor safety orders" only if the conditions resulted in the loss of lives or other "grave loss." NGOs, defectors, media, and UN officials reported unsafe working conditions across a variety of sectors, particularly in heavy industries such as mining and manufacturing. Workers did not have the right to remove themselves from hazardous working conditions without jeopardy to their employment.

Many worksites were hazardous, and the industrial accident rate was high. Managers were often under pressure to meet production quotas and often ignored training and safety requirements.

## **Wage, Hour, and OSH Enforcement**

No information was available on enforcement of wage, hour, and OSH laws or penalties for violations. Some defectors reported workdays of 15 to 16 hours in fields such as mining and military manufacturing. In other cases, defectors reported workdays of eight hours or less (in some instances due to inadequate supplies of electricity or raw materials) and the ability to take advantage of the 15 days of annual leave stipulated by law. In April RFA reported children between the ages of 12 and 17 were forced to work on construction projects from 5 a.m. to 7 a.m., including on Sundays. OCHCR

reported the health and safety of workers was compromised by the work quotas enforced by the state.

The economy included an informal sector, but there were no reliable estimates regarding its size or composition. Many citizens depended on the informal economy for their survival since state-sector wages and rations were not sufficient. There were few if any legal protections for workers in the informal sector.

## **c. Disappearance and Abduction**

### **Disappearance**

There were reports of enforced disappearances by or on behalf of government authorities.

The OHCHR's March 2023 report identified two broad categories of enforced disappearances by authorities. The first was the "continued practice of arbitrary detention inside the country of its nationals, including following their forcible repatriation from neighboring countries, and subsequent concealment of the fate and whereabouts of the forcibly disappeared person." The second was the "enforced disappearance of foreign nationals, mainly between 1950 and the mid-1980s," including ROK nationals during and after the Korean War, unrepatriated prisoners of war, and abductees from other foreign countries. The ROK officially recognized

516 South Korean civilians abducted by DPRK authorities since the end of the Korean War and not returned.

Speaking at a UN Security Council meeting in June, Volker Türk, the UN High Commissioner for Human Rights, highlighted the matter of enforced disappearance both inside the country and of citizens of other countries, notably the ROK and Japan, perpetrated since 1950; he added that the full truth about the fate of these individuals, estimated to be more than 100,000, remained unknown.

Authorities provided no additional information during the year on the whereabouts of 12 Japanese citizens believed to have been abducted by the DPRK government in the 1970s and 1980s but not yet returned. In addition to these cases, the Japanese government identified 873 other missing persons cases in which it stated the possibility of abduction by the DPRK could not be ruled out.

Soo-Ok Jeong and Cheol Ok Kim were among a group of 600 North Koreans who were reportedly forcibly repatriated to the DPRK from the PRC in October 2023; their whereabouts were unknown.

## **Prolonged Detention without Charges**

Arbitrary arrests reportedly occurred. According to the ROK Ministry of Unification's 2024 *Report on North Korean Human Rights*, individuals were detained for exercising their constitutional freedoms of religion or

expression. KINU's 2023 *White Paper* reported arbitrary arrest commonly occurred for political crimes, attempting to depart the country without authorization, engaging in religious activities, and watching or distributing foreign media. In 2023, RFA reported on cases in which authorities detained citizens for using propaganda newspapers as scrap paper, selling memory cards containing foreign media in marketplaces, and living together out of wedlock, with punishments often consisting of several years in a labor camp. Prisoners in all types of detention facilities included individuals who had no formal convictions or access to due process, and some individuals who committed no crime were detained under a system of guilt by association.

Six South Korean prisoners including Kim Jung-wook, Kim Kook-kie, and Choi Chun-gil, were believed to remain in detention in the DPRK, some of them incarcerated for as long as 10 years.

#### **d. Violations in Religious Freedom**

See the Department of State's annual *International Religious Freedom Report* at <https://www.state.gov/religiousfreedomreport/>.

#### **e. Trafficking in Persons**

See the Department of State's annual *Trafficking in Persons Report* at <https://www.state.gov/trafficking-in-persons-report/>.

## Section 3. Security of the Person

### a. Torture and Cruel, Inhuman, or Degrading Treatment or Punishment

The law prohibited torture or inhuman treatment, but there were credible reports government officials employed such practices. Numerous escapee testimonies and NGO, media, and UN reports described the use of torture by authorities in detention facilities. Methods of torture and other abuse reportedly included severe beatings, electric shock, prolonged periods of exposure to the elements, humiliations such as public nakedness, confinement for up to several weeks in small “punishment cells” in which prisoners were unable to stand upright or lie down, being forced to kneel or sit immobilized for long periods, being hung by the wrists, water torture, and being forced to stand up and sit down or squat repeatedly to the point of collapse.

The law stipulated re-education through labor as an administrative penalty, including for minor offenses. The KINU 2023 *White Paper* detailed accounts from a defector who was sentenced to six months of re-educational labor for absence from work without notice. Labor punishments commonly took place under harsh conditions, often in industries such as construction or logging.

The ROK Ministry of Unification's 2024 *Report on North Korea Human Rights* stated that "according to the testimonies of North Korean defectors, it has been discovered that torture and inhuman treatment are frequently used during the interrogation process in the DPRK. Most often, various forms of torture, such as beatings, were employed as interrogation methods to extract confessions." Specific abuses against detainees documented in the report included beatings, sexual violence, forced abortion, stress positions, inadequate food, and confinement in insect-infested facilities with inadequate heating and lack of access to medical care and bathroom facilities.

Detainees and prisoners consistently reported violence and torture. In 2023, the NGO Korea Future released a report based on interviews with 269 victims, witnesses, and perpetrators documenting more than 1,000 instances of torture, cruel, inhuman, or degrading punishment and nearly 100 extrajudicial killings. These abuses were committed with impunity. One witness testified that he attempted to report guards for raping women detainees but was beaten by guards shortly after making the report. The Korea Future report provided three illustrative cases of the use of torture or abuses inconsistent with international standards, including forced abortions, the denial of food, and use of positional torture. International press reported re-education through labor camps held thousands of political prisoners, economic criminals, ordinary criminals, and family members of accused individuals.

Women in detention were vulnerable to sexual violence. A sample study by the ROK-based NGO Database Center for North Korean Human Rights' Unified Human Rights Database documented 273 cases of sexual violence against women in detention facilities from 1984-2022.

Physical abuse by prison guards was systemic. Citing years of testimony from escapees, KINU's 2023 *White Paper* reported "violence and cruel treatment" continued to occur in several categories of detention facilities and that "many detainees suffer from poor nutrition, sanitation, and health care." A March 2024 Korea Future report on sexual and other violence against women and girls described invasive body inspections that involved penetrative inspection of the vaginal and anal cavities and dehumanizing and derogatory verbal sexual harassment. A March 2023 Korea Future report mapping 206 detention facilities across the country cited survivors who described "seeing prison guards raping women detainees, [and] detainees being beaten up and forced to walk around with [their] body bowed at a right angle."

Impunity for such acts was a significant problem. Reports from previous years attributed rape and other abuses to the impunity and unchecked power of prison guards and other officials.

## **b. Protection of Children**

### **Child Labor**

In October, Choe Ryong-hae, chairman of the Supreme People's Assembly Standing Committee, stated the minimum working age was increased from 16 to 17 so that students would remain in school until at least age 17.

The government did not effectively enforce the law against child labor. Penalties were commensurate with those for analogous crimes such as kidnapping but were not applied against violators. There were reports child labor occurred, including forced child labor. In June the UN Human Rights Office in Seoul noted forced labor involving children as young as 10.

Officials occasionally sent schoolchildren to work in factories or fields for short periods to assist in completing special projects, such as snow removal on major roads or meeting production goals. The UN Committee on the Rights of the Child previously noted children were also sometimes subjected to mass mobilizations in agriculture away from their families, with long working hours per day, sometimes for periods of a month at a time, and worked under hazardous conditions. A November 2022 RFA article reported underprivileged youth, such as orphans and children from poor families, were disproportionately forced by authorities to perform free manual labor.

Reports from prior years noted authorities subjected children in political prison camps to forced labor for up to 12 hours per day and did not allow

them to leave the camps. Prisons offered them limited access to education.

## **Child Marriage**

The minimum age of marriage was 18 for men and 17 for women. There was no information regarding enforcement of the law.

## **c. Protection to Refugees**

The government did not cooperate with the Office of the UN High Commissioner for Refugees or other humanitarian organizations in providing protection and assistance to refugees, returning refugees, or asylum seekers, as well as other persons of concern.

## **Provision of First Asylum**

The law did not provide for granting asylum or refugee status, and the government had no system for providing protection for refugees. No information was available on any government policy or provision for refugees or asylum seekers.

## **d. Acts of Antisemitism and Antisemitic Incitement**

There was no Jewish population, and there were no reports of antisemitic incidents.

## **e. Instances of Transnational Repression**

The country engaged in transnational repression against individuals outside its sovereign borders.

### **Extraterritorial Killing, Kidnapping, or Violence or Threats of Violence**

The government was alleged to have killed or kidnapped persons, or used violence or threats of violence against individuals in other countries, in reprisal for political activities. DPRK agents continued to seek and carry out forced repatriations of DPRK citizens abroad, in some cases working with or pressuring foreign governments to do so. According to a 2020 report by the Hudson Institute, DPRK kidnappers focused on the PRC, where they abducted DPRK and ROK citizens who helped them while “China looks the other way.” In 2021 media reported a statement by the ROK Ministry of Unification that 42 North Korean defectors went missing in the previous five years and a defector’s observation that in some cases there was “strong suspicion of abduction or other foul play” by the DPRK Ministry of State Security. In the NGO Transitional Justice Working Group’s October report, one escapee testified that in 2021 she hid from DPRK authorities in China who were searching for her with photographs.

In prior years Russia was also alleged to have assisted the DPRK in the forced return of DPRK citizens. For example, in June 2023 Russian authorities

grounded a Moscow-bound flight to arrest a North Korean diplomat's wife and son, age 15, who went missing from the far eastern city of Vladivostok the day before.

### **Threats, Harassment, Surveillance, or Coercion**

The government attempted to surveil, harass, and threaten defectors and other perceived enemies outside the country.

Government agencies exerted pressure on family members of defectors to pressure them to return home. According to the Seoul-based online newspaper *Daily NK*, security agents made a series of arrests of defectors' family members in late 2023 while they were collecting money sent by relatives in South Korea for the New Year. One of the family members was sentenced to three months of hard labor, while the remittance agent was sentenced to six months. One escapee who previously worked at a DPRK embassy described how, with few exceptions, the government ensured that at least one immediate relative of overseas personnel remained in the DPRK as a hostage to discourage defections. Defectors reported family members in the country contacted them to urge their return, apparently under pressure from government officials. In April, *Daily NK* reported defectors in Shenyang received threatening calls and text messages, presumably from DPRK government officials.

## Efforts to Control Mobility

The government attempted to restrict mobility to exact reprisal and enhance control over its citizens abroad, including by holding or revoking their travel documents and punishing unauthorized travel away from worksites and residences. Such restrictions were often imposed with the complicity of local authorities and involved agents of the Ministry of State Security. Diplomats, overseas workers, and their managers rarely had direct access to their passports, which were routinely held by Ministry of State Security officials to reduce opportunities for defection.

According to a 2022 HRNK report, *North Korean Workers Officially Dispatched to China and Russia: Human Rights Denial, Chain of Command & Control*, North Korean workers abroad had no freedom of association or collective bargaining, and their freedom of movement was “strictly limited.” According to the report, “Perceived dissent results in swift repatriation and harsh punishment” such as that reported by a former North Korean logger in Primorsky, Amur Oblast, Russia, who stated, “They put plaster casts on both of the worker’s legs and send him back. The casts are taken off after they cross the border. They let the workers go home if it’s a minor problem but for bigger issues they are sent to the kwanliso.”

## Bilateral Pressure

There were reports the DPRK attempted to exert bilateral pressure on other

countries aimed at having them take adverse action against specific individuals for politically motivated purposes. In December 2023, the UN General Assembly Third Committee adopted by consensus a resolution expressing concern regarding the government's pressure exerted on other states to forcibly return North Korean refugees and asylum seekers and the retaliation those individuals faced once repatriated, including internment; torture; other cruel, inhuman, or degrading treatment or punishment; sexual and gender-based violence; or the death penalty. The resolution urged all states to respect the fundamental principle of nonrefoulement. A report published jointly by the Center for Strategic and International Studies and the George W. Bush Institute in September 2023 described how the PRC and Russia in particular acted as "active facilitators of the regime's transnational repression," including by "frequently detain[ing] and repatriat[ing] North Korean asylum seekers back to North Korea."

**Endnote: Note on Sourcing**

The United States did not have diplomatic relations with the Democratic People's Republic of Korea. The DPRK did not allow representatives of foreign governments, journalists, or other invited guests the freedom of movement that would have enabled them to assess fully human rights conditions or confirm reported abuses. Harsh border restrictions imposed at the start of the COVID-19 pandemic continued. As a result, few diplomatic missions and aid organizations operated in the DPRK during the

year, and the number of defectors remained well below prepandemic levels, further limiting the amount of reliable information regarding conditions in the country.